

# **Tentative Rulings for August 25, 2026**

## **Department 7**

**To request oral argument, you must notify Judicial Secretary  
Crystal Marias at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                                             | HEARING NAME                                        |
|-------------|-------------------------------------------------------|-----------------------------------------------------|
| CVPS2405899 | SPERRY vs JVTS, INC, A CALIFORNIA CORPORATION COMPANY | MOTION TO BE RELIEVED AS COUNSEL FOR SHEZLEAF, INC. |

**Tentative Ruling:** Defendant Shezleaf's Counsel's Motion to be Relieved as Counsel is granted.

2.

| CASE #      | CASE NAME        | HEARING NAME                                                |
|-------------|------------------|-------------------------------------------------------------|
| CVRI2500801 | GAUSE vs SARDONI | MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS |

| CASE #      | CASE NAME        | HEARING NAME                                                                               |
|-------------|------------------|--------------------------------------------------------------------------------------------|
| CVRI2500801 | GAUSE vs SARDONI | MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES AND TO AWARD MONETARY SANCTIONS |

| CASE #      | CASE NAME        | HEARING NAME                                                                                 |
|-------------|------------------|----------------------------------------------------------------------------------------------|
| CVRI2500801 | GAUSE vs SARDONI | MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR ADMISSIONS AND TO AWARD MONETARY SANCTIONS |

**Tentative Ruling:** Plaintiff's Motions to Compel are granted in part;

For RFPs: Granted as to requests nos. 1-16 and 22-32.

As to nos. 28-30, granted only as narrowed to communications concerning Plaintiff, the underlying actions, or this litigation. Any privilege claim shall be supported by a privilege log.

Denied as to no. 17.

For FROGs:

Granted as to nos. 4.1, 12.1, 15.1, 17.1, 50.1-50.3, 50.5 & 50.6. Deny as to no. 50.4.

For RFAs:

Granted as to nos. 1, 6, & 7; Denied without prejudice as to nos. 8 to 11 due to the defective separate statement.

Requests for Sanctions are denied.

#### REQUESTS FOR PRODUCTION

Plaintiff argues that Defendant's responses to Requests for Production, Set One ("RFPs"), nos. 1-17 and 22-32 are unverified, evasive, and not code compliant. He argues that Defendant produced no documents. Plaintiff requests \$3,210 in sanctions.

In opposition, Defendant argues his objections were proper because the requests were vague, burdensome, and sought documents already available to Plaintiff through the MyCase database. He contends that Plaintiff did not meaningfully meet and confer. He requests \$1,530 in cross-sanctions.

In reply, Plaintiff argues that Defendant relied on facially inapplicable boilerplate objections, never produced any documents, and failed to serve promised supplemental responses.

In a motion to compel further responses as to document requests, the moving party must state specific facts demonstrating good cause justifying the discovery sought. (CCP §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance." (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Then, the burden shifts for the opposing party to justify its objections. (*Kirkland*, supra, 95 Cal.App.4th at 98.)

Here, good cause is shown. The requests seek documents concerning Defendant's affirmative defenses, attorney-client relationship, representation, communications, billing, and handling of the underlying actions. Defendant's assertion that documents remain accessible through MyCase does not constitute a statement of compliance or inability to comply.

As to requests nos. 1-14, Plaintiff seeks document supporting Defendant's affirmative defenses. These defenses include limitations (#1), failure to state a claim (#2), laches (#3), estoppel (#4), mitigation (#5), waiver (#6), comparative relief (#7), assumption of risk (#8), consent (#9), comparative fault (#10), apportionment of fault (#11), unclean hands (#12), and intervening or superseding cause (#13 & #14). Each request is tied to a specific defense and seeks relevant evidence concerning the defense's factual basis. The term "supporting" is reasonably understandable. Defendant's response that Plaintiff could access documents through MyCase does not constitute a statement of compliance or inability to comply. Defendant also has not shown undue burden or explained why responsive documents are unavailable.

Requests nos. 15 & 16 seek contracts and amended contracts concerning the incident. These are specific and relevant to the underlying transactions. Defendant's objection challenges the definition of the term "supporting," but this term does not appear in either request. It therefore does not address the requests served.

Nos. 17, 22, 23, and 24 seek documents identified in Defendant's responses to FROG nos. 4.1, 15.1, 17.1, and 50.1. Defendant's response to no. 17 (that no documents were identified in FROG nos. 4.1) adequately addresses the request as framed. Defendant's original response to FROG 4.1 contains only objections and did not identify particular documents. Accordingly, no further response is required unless Defendant's supplemental response to FROG no. 4.1 identifies responsive documents. In contrast, Defendant's responses to nos. 22, 23 & 24 are incomplete. No. 22 seeks documents identified in FROG no. 15.1. Because that response identified some documents, Defendant's statement that no documents were identified is incomplete. The motion is therefore be granted as to no. 22. As to nos. 23 & 24, Defendant's objections do not address the requests and do not state whether he will comply or cannot comply. The court also grants the motion as to nos. 23 & 24.

Requests nos. 25 to 27 seek documents concerning Defendant's representation of Plaintiff in the *Geaux Industries* and *Fairprice Enterprises* matters, including correspondence, emails, pleadings, discovery, contracts, notes, bills, and payment records. These are relevant to the scope and performance of Defendant's alleged attorney-client duties. Plaintiff's access to the MyCase database does not relieve Defendant of his duty to provide documents. The partial overlap between nos. 25 and 26 does not justify withholding documents.

Nos. 28 to 30 seek communications with Steven A. Booska, Plaintiff, and Kevin E. Monson. Booska is a person with whom Defendant allegedly communicated concerning the settlement of the underlying matters. Monson appears to be an individual involved and was copied on discovery responses. The record does not clearly establish their titles or roles. The requests appear to be relevant to Defendant's handling of the underlying matters, but the requests as framed lack subject-matter and temporal limits. As such, the court compels further responses only as to communications concerning Plaintiff, the underlying actions, or this litigation. The court grants the motion as to nos. 28 to 30, subject to these limits. Any privilege claim shall be supported by a privilege log.

Nos. 31 & 32 are about contracts and payments. No. 31 seeks contracts and related communications with Plaintiff. No. 32 seeks records of payments made by Plaintiff. These are relevant to the attorney-client relationship. Defendant's responses that Plaintiff could access documents through MyCase are insufficient. Defendant's objection challenges the definition of the term "supporting," but this term does not appear in either request. The court grants the motion as to nos. 31-32.

#### FROGs

Plaintiff argues that Defendant gave unverified, evasive, and incomplete responses to Form Interrogatories, Set One ("FROGs") nos. 4.1, 12.1, 15.1, 17.1, and 50.1-50.6. Plaintiff contends that Defendant improperly withheld basic insurance coverage information, failed to identify witnesses, and refused to state facts supporting defenses and contentions. Plaintiff requests \$3,210 in sanctions.

In opposition, Defendant argues that the term “INCIDENT” is insufficiently defined. Defendant argues that the interrogatories seek information equally available to Plaintiff. Defendant argues insufficient meet and confer. He also submits a belated verification. He requests \$1,566 in cross-sanctions.

In reply, Plaintiff asserts that Defendant promised but never served supplemental responses. Plaintiff further argues that the late verification does not cure the deficiencies.

A party may file a motion compelling further answers to interrogatories if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (CCP § 2030.300.) Upon a timely motion to compel further, the responding party has the burden to justify any objection or failure to fully respond to the interrogatory. (*Fairmont Ins. Co. v. Superior Court (Stendell)* (2000) 22 Cal.4th 245, 255.) “Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits.” (CCP § 2030.220(a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (*Id.* at § 2030.220(b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information....” (*Id.* at § 2030.220(c).)

Request no. 4.1 seeks information about insurance that may cover the claims. Insurance information is discoverable under CCP § 2017.210. Defendant’s relevance, collateral-source, and privacy objections are unpersuasive

No. 12.1 seeks the identities and contact information of persons who witnessed or know about the incident. The pleadings identify the relevant events, and Defendant’s response to no. 15.1 identifies persons with knowledge. His response to no. 12.1 is therefore incomplete.

As to nos. 15.1 and 17.1, they seek factual bases for defenses and admissions. Defendant provided a general narrative or objections rather than separately identifying the required facts, witnesses, and documents. The interrogatories seek factual contention but not work products or expert discovery. The objections do not justify withholding information.

Finally, nos. 50.1-50.3, 50.5, and 50.6 seek information concerning the alleged agreements, breaches of agreement, excused performance, enforceability, and ambiguity. Defendant’s responses do not fully address the requested contentions. The interrogatories seek contentions, but not expert testimony or legal research as objected.

For no. 50.4, it asks whether any alleged agreement was terminated and, if so, identify each agreement terminated, the termination date, and basis for termination. Defendant identified the attorney-client fee contract, stated that it was terminated “by mutual agreement,” and provided the date of 2/3/25. The later verification cures the verification defect. No further response is required.

### RFAs

Plaintiff argues that Defendant failed to serve verified substantive responses to Requests for Admission, Set One (“RFAs”), nos. 1 and 6-11. Plaintiff contends that the requests properly seek facts regarding the alleged malpractice. Plaintiff requests \$3,210 in sanctions.

In opposition, Defendant argues that the requests call for conclusions, expert opinions, and speculation. Defendant asserts that objection-only responses did not require verification. He nonetheless submits a belated verification. He also argues Plaintiff’s separate statement inaccurately reproduces the responses to nos. 8-11. He requests \$1,620 in cross-sanctions.

Defendant correctly argues that objection-only responses need not be verified. (CCP § 2033.240(a).) Nevertheless, “when a party is served with a request for admission concerning a legal question properly raised in the pleadings he cannot object simply by asserting that the request calls for a conclusion of law. He should make the admission if he is able to do so and does not in good faith intend to contest the issue at trial, thereby ‘setting at rest a triable issue.’ [citation.] Otherwise he should set forth in detail the reasons why he cannot truthfully admit or deny the request.” (*Burke v. Superior Court* (1969) 71 Cal.2d 276, 282.)

Nos. 1, 6, & 7 concern whether Plaintiff had “a meritorious and sufficient defense” to the *Geaux Industries* matter, whether Defendant “failed to respond to the summons and complaint” in *Geaux Industries*, and whether Defendant “failed to attempt to set aside the default judgment entered against Plaintiff” in that case. Defendant’s objections do not justify refusing to answer.

The separate statement, however, appears to reproduce the response to no. 7 as the response to nos. 8-11, according to Defendant. Plaintiff did not substantively address this contention with his reply. A separate statement must accurately reproduce the text of each disputed response (CRC rule 3.1345(c)(2)), and Plaintiff failed to do so here. The court denies the motion as to nos. 8 to 11.

### 3.

| CASE #      | CASE NAME                                                        | HEARING NAME                     |
|-------------|------------------------------------------------------------------|----------------------------------|
| CVRI2505034 | PISCOPO vs CGP<br>MAINTENANCE &<br>CONSTRUCTION<br>SERVICES, INC | MOTION FOR LEAVE TO<br>INTERVENE |

**Tentative Ruling:** Intervenor BERKSHIRE HATHAWAY GUARD INSURANCE COMPANIES’ unopposed Motion to intervene is granted.

### 4.

| CASE #      | CASE NAME                     | HEARING NAME               |
|-------------|-------------------------------|----------------------------|
| CVRI2505180 | CITY OF RIVERSIDE vs<br>LOPEZ | MOTION TO APPOINT RECEIVER |

**Tentative Ruling:** Petitioner City of Riverside’ Motion to Appoint a Receiver is granted.

## REQUEST FOR JUDICIAL NOTICE

The Court grants City's RJN as to Exhibits A and B, which are different sections of the RMC. (Evid. Code, § 452, subd. (b); see *Salinero v. Pon* (1981) 124 Cal.App.3d 120, 133; *Velez v. Smith* (2006) 142 Cal.App.4th 1154, 1168, fn. 7.)

Health and Safety Code section 17980.6 states, in pertinent part: "If any building is maintained in a manner that violates any provisions of this part, the building standards published in the State Building Standards Code relating to the provisions of this part, any other rule or regulation adopted pursuant to the provisions of this part, or any provision in a local ordinance that is similar to a provision in this part, and the violations are so extensive and of such a nature that the health and safety of residents or the public is substantially endangered the *enforcement agency may issue an order or notice to repair or abate* pursuant to this part..." (Emphasis added.)

Health and Safety Code section 17980.7, subdivision (c) authorizes the court to appoint a receiver to oversee the rehabilitation of substandard properties if the property owner fails to comply with an order or notice to repair issued by a local code enforcement agency pursuant to section 17980.6. "[A]n enforcement agency may issue a notice to an owner to repair or abate property conditions that violate state or local building standards and substantially endanger the health and safety of residents or the public." (*City of Santa Monica v. Gonzalez* (2008) 43 Cal.4th 905, 912 ["*Gonzalez*"). If the owner does not correct the conditions within a "reasonable time" after the notice or order is issued, section 17980.7, subdivision (c) authorizes the enforcement agency to seek, by court petition, the appointment of a receiver to "assume control over the property and remediate the violations or take other appropriate action." (*Id.*)

In addition to the authority provided by section 17980.7, the appointment of a receiver is authorized under the general principles of law. The court has inherent power to appoint a receiver when necessary to accomplish some judicial objective. (*McCarthy v. Poulsen* (1973) 173 Cal.App.3d 1212, 1219.) In *City and County of San Francisco v. Daley* (1993) 16 Cal.App.4th 734, the court upheld the exercise of discretion by a court to appoint a receiver to oversee the rehabilitation of a substandard single-family residence in San Francisco after the property owners failed to comply the city's code enforcement directives. (*Id.* at 744.)

"A receivership pending suit is a provisional, equitable remedy." (*Southern Cal. Sunbelt Developers, Inc. v. Banyan Ltd. Partnership* (2017) 8 Cal.App.5th 910, 922, 925[.]) "A receiver is an agent and officer of the court, and is under [the court's] control and supervision..." (*City of Chula Vista v. Gutierrez* (2012) 207 Cal.App.4th 681, 685 [citing Code Civ. Proc., § 568; Cal Rules of Court, rule 3.1179 ["*Gutierrez*"].) "The receiver is an agent of the court and not of any party, and as such: (1) Is neutral; (2) Acts for the benefit of all who may have an interest in the receivership property; and (3) Holds assets for the court and not for [any party]." (Cal. Rules of Court, rule 3.1179(a); see *Lesser & Son v. Seymour* (1950) 35 Cal.2d 494, 499.) A "receiver is also a fiduciary who must act for the benefit of all parties interested in the property." (*Gutierrez, supra*, 207 Cal.App.4th at 685; see also *Shannon v. Superior Court* (1990) 217 Cal.App.3d 986, 992.)

## MERITS

City moves for an order (1) granting the receiver authority with respect to the Property as set forth in Health & Safety Code section 17980.7, subdivision (c) and Code of Civil Procedure section 568, (2) enjoining Defendants from continuing the nuisance activity; (3) enjoining Defendants from collecting rent or income from the Property, from interfering with the receiver in the management and rehabilitation of the Property, and from transferring or encumbering any interest in the Property during the receivership period pursuant to Health and Safety Code section 17980, subdivision (c)(3); ordering Defendants to be enjoined from claiming any deduction with respect to State taxes for interest, taxes, expenses, depreciation, or amortization paid or incurred with respect to the Property throughout the duration of this action under Health and Safety Code section 7, subdivision (b)(1).)

City's petition includes a declaration by Code Enforcement Officer Ruth Mendoza ("Mendoza") who testifies to the history of notices, warnings, and citations City issued to Defendants relating to the Property since August 2014 due to a 1,098 square foot second story addition, constructed without required building permits. (Mendoza Decl., ¶¶6.) Copies of photos, notices, warnings, and citations are provided in Mendoza's declaration. (*Id.* at 7-26, Exhs. A-P.)

On October 11, 2018, an Administrative Civil Penalties hearing was held, at which the hearing officer imposed daily fines of \$100 until the violation is corrected. (*Id.* at ¶¶27, Exh. Q.) From November 19, 2018 to January 14, 2021, Code Enforcement inspected the Property at least 10 times and observed the violations from the October 2018 hearing were not corrected. (*Id.* at ¶¶28-30; Exhs. R-T.) On March 24, 2026, the violations were still not corrected. (*Id.* at ¶¶35.)

On March 15, 2025, Mendoza posted a 3-day Receivership at the Property. (Mendoza Decl., ¶¶32, Exh. V.) Mendoza testified that Code Enforcement has responded to the Property at least 36 times and issued at least 12 notices, citations, and warnings to Defendants since August 2014. (*Id.* at ¶¶36.) As of the date of Mendoza's declaration on April 10, 2026, Defendants failed to make a good faith effort to provide City with a schedule of anticipated performance and rehabilitation. (*Ibid.*)

The evidence strongly demonstrates Defendants have been given ample reasonable opportunity to bring the Property into compliance but have failed to do so. City has also complied with all of the procedural prerequisites for the appointment of a receiver. As to Defendants' argument that the last inspection was May 2025, this is erroneous as Mendoza testified from May of 2025, through March 24, 2026, Defendants have not contacted Code Enforcement, and there are no permits on file for the Property. (Mendoza Decl., ¶¶35.) Moreover, as of the date of Mendoza's signed declaration on April 10, 2026, Defendants failed to provide City with a schedule of anticipated performance and rehabilitation or make adequate efforts to abate and maintain the Property in compliance with Health and Safety Code and RMC. (*Id.* at ¶¶36.) This was four months ago. Thus, there is no "gap" in the present physical conditions as Defendants erroneously argue. Mendoza testifies that the conditions pose an imminent threat to the health and safety of the surrounding neighborhood. (*Ibid.*)



Defendants also argue the proposed receiver requests broad operation and financial authority. Defendants take issue with Randolph's compensation structure and qualifications. These arguments are unavailing. Although the petition does not formally identify a proposed receiver, Kevin K. Randolph submitted a declaration identifying himself as the "receiver-nominee" in this matter and describing his qualifications, including education and training. (Randolph Decl., ¶¶1-3.) Randolph testifies that he has been appointed as a receiver or receiver's representative in over 230 Health and Safety Code and related receivership cases by the California courts, involving single-family, multi-family, and retail/commercial properties. (*Id.* at ¶¶3-4.) He outlines the actions he would undertake if appointed, including securing, evaluating, and coordinating the rehabilitation of the Property. (*Id.* at ¶¶5-10.) This is sufficient to demonstrate that Randolph is a qualified receiver.